INDEPENDENT CONTRACTOR AGREEMENT

Payment terms revision: hours-worked-limited-cancellation-v2

This Independent Contractor Agreement ("Agreement") is made and entered into on _____, by and between Emanuel Labor Services LLC, a Louisiana limited liability company (the "Company"), and _____ (the "Contractor").

WHEREAS, the Company desires to contract with the Contractor for the performance of certain labor and staffing services; and WHEREAS, the Contractor represents that they operate an independent business, have complied with all federal, state, and local laws regarding business permits and licenses, and certify to the statements listed in Appendix A; NOW, THEREFORE, in consideration of the mutual promises contained herein, the Parties agree as follows:

1. Services to Be Performed

Contractor shall provide temporary labor or staffing services on a per-job basis. Contractor retains full control over how services are performed, subject to Company's right to inspect work and ensure compliance with client requirements and industry standards.

2. Payment

Company shall compensate Contractor solely for hours actually worked at the agreed-upon rates, except that cancellation by Company or its client within twenty-four (24) hours before a confirmed workday's scheduled start shall entitle Contractor to the agreed compensation for that canceled workday, subject to a maximum of one (1) workday per canceled job or assignment. No compensation shall be due for the remaining unworked days.

Contractor shall submit an invoice detailing services rendered. Payment shall be made within thirty (30) days of receipt of an approved invoice. If payments are scheduled beyond thirty days, Contractor shall be notified and must agree to payment terms before accepting the contract.

3. Term & Termination

This Agreement shall commence on the Effective Date and shall continue until terminated by either Party. Either Party may terminate this Agreement with five (5) days' prior written notice, except in cases of immediate termination due to breach, safety violations, or conflicts of interest. This Agreement terminates immediately upon the death of the Contractor.

4. Instrumentalities/Tools/Supplies

Contractor shall provide their own tools, equipment, and materials unless otherwise agreed upon in writing. If the Company agrees in writing to reimburse certain expenses, Contractor must submit appropriate documentation with the invoice.

5. Compliance with Client Requirements

Contractor shall comply with any specific project requirements set forth by the Company's clients, including but not limited to background checks, security clearances, drug testing, or other venue policies.

6. Conflicts of Interest and Immediate Notification

Contractor shall not engage in any activity that conflicts with the Company's interests and must immediately disclose any potential conflicts, safety concerns, or security issues.

7. Independent Contractor Status & Insurance

Contractor is an independent contractor and not an employee of the Company. Contractor shall obtain and maintain all necessary workers' compensation, general liability, and other required insurance at their own expense. Contractor must provide proof of insurance upon request.

8. Taxes & Benefits

Contractor is responsible for all federal, state, and local taxes, including but not limited to income tax, Social Security, Medicare, and unemployment taxes. Company shall not provide any employment benefits, including health insurance, retirement, or workers' compensation.

9. Confidential Information

Contractor shall not disclose, use, or exploit the Company's proprietary information, trade secrets, client lists, or operational methods. Any breach of confidentiality may result in legal action, including injunctive relief.

10. Work Quality and Professionalism

Contractor agrees to maintain a high standard of professionalism, including punctuality, appropriate attire, and respectful conduct toward clients and colleagues. Contractor must complete assignments professionally and in accordance with industry standards.

11. Dispute Resolution & Arbitration

Any disputes arising under this Agreement shall be resolved through binding arbitration in New Orleans, Louisiana, in accordance with the Federal Arbitration Act. No class-action or collective arbitration shall be permitted. The prevailing party shall be entitled to recover reasonable attorney's fees and costs.

12. Indemnification

Contractor shall fully indemnify and hold harmless the Company, its agents, and employees from any claims, demands, liabilities, or damages arising from Contractor's services, including but not limited to injury claims, contract breaches with clients or tax obligations. This indemnification applies even after termination of the Agreement and is not limited by insurance coverage.

13. Non-Solicitation

Contractor agrees that for a period of one (1) year after termination of this Agreement, they shall not solicit or work directly for the Company's clients in a manner that bypasses the Company's involvement.

14. Notices

All notices must be in writing and delivered personally, via certified mail, or by electronic means that provide proof of delivery.

15. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Louisiana.

16. Entire Agreement & Severability

This Agreement represents the entire understanding between the Parties and supersedes any prior agreements. If any provision is found invalid, the remainder shall remain in full force and effect.

APPENDIX A: CERTIFICATION OF INDEPENDENT CONTRACTOR STATUS

[ ] Contractor is an independent contractor and not an employee of the Company.

[ ] Contractor maintains their own business and works with multiple companies.

[ ] Contractor provides their own tools, equipment, and materials.

[ ] Contractor determines how services are performed and is not under direct Company control.

[ ] Contractor is responsible for their own insurance, taxes, and business expenses.

[ ] Contractor acknowledges that they do not receive employee benefits from the Company.

[ ] Contractor understands that failure to comply with client requirements may result in removal from a project.

[ ] Contractor agrees to indemnify the Company against liabilities arising from their work.

[ ] Contractor agrees to adhere to professional standards, including punctuality, attire, and conduct.

Contractor Signature: _____ Date: _____

Company Representative (Emanuel Labor Services LLC): _____ Date: _____